

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2024

BEFORE HER HONOR: SIE-A-NYENE G. YUOHCHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE

The Intestate Estate of John W. Gbedze represented by)
its Administrator of the City of Paynesville, Republic of)
Liberia.....Movant)
Versus) MOTION TO DISMISS APPEAL
)

Mr. Aboubakar Diallo of the City of Monrovia, Liberia)
.....Respondent)

GROWING OUT OF THE CASE:)
)

Mr. Aboubacar Diallo of the City of Monrovia, Liberia)
.....Appellant)
)

Versus) PETITION FOR DECLARATORY
) JUDGMENT

The Intestate Estate of John W. Gbedze, represented by)
its Administrator of the City of Paynesville, Republic of)
Liberia.....Appellee)

Heard: October 21, 2024 Decided: December 19, 2024

MR. JUSTICE GBEISAY DELIVERED THE OPINION OF THE COURT

This motion to dismiss appeal originates from a judgment rendered by the Sixth Judicial Circuit Court, Montserrado County denying the respondent/appellant's petition for declaratory judgment filed against the movant/appellee.

The facts show that the movant and respondent entered into a sub-lease agreement on February 24, 2023, which was to commence on January 1, 2024, and run until December 31, 2035. Clause eight (8) of the said sub-lease agreement provided that: "In the event of termination of this agreement of lease, the party intending to terminate shall serve within notice of two (2) months of the party's intending to terminate on the other party, in that event, the rent shall be provided for the period."

On March 16, 2023, the movant/appellee gave notice to the respondent/appellant that it intended to terminate the sub-lease agreement invoking clause eight (8) of the sub-lease agreement executed by the parties as mentioned above. The respondent/appellant strangely rejected the said termination letter by the movant/appellee and filed an action for declaratory judgment in the lower court.

The lower court, after pleadings were exchanged and rested, heard arguments pro et con and ruled denying the petition for declaratory judgment on grounds that the respondent/appellant suffered no injury since the sub-lease agreement was to commence on February 24, 2024, and it had not taken effect at the time the movant/appellee decided to terminate the said sub-lease agreement.

The respondent/appellant noted his exceptions and announced an appeal in open court. He filed his bill of exceptions, his appeal bond, and notice of completion of appeal, completely fulfilling the appeal statute, thereby placing his appeal legally before this Court.

The movant/appellee has argued that because the respondent/appellant has not transcribed his records to this Court for the past eight (8) months; therefore, the appeal should be dismissed as the failure of the respondent/appellant to transcribe his records before this Court is tantamount an abandonment of his appeal.

Respondent has argued his failure to transcribe his records to this Court is not a ground for dismissing an appeal; moreover, he has already transcribed his records before this Court, and as such the movant motion should be denied as it has no legal basis.

Civil Procedure Law, Rev. Code 1:51.11; provides that: *"The clerk of the court from which the appeal is taken shall make a record containing certified copies of all the writs, returns, notices, pledges, motions, applications, certificates, minutes, verdicts, decisions, rulings, orders, opinions, judgments, bill of exceptions, and all other proceedings in the case. He shall transmit his record with a copy of the appeal bond to the appellate court within ninety (90) days after rendition of judgment. The clerk of the appellate court shall docket the record forthwith and forward a receipt to the clerk who transmitted it."*

This provision of the statute quoted is not a ground for dismissing an appeal. Movant has however argued that this Court quite recently dismissed an appeal for failure of the appellant to transcribe the records to the Supreme Court within ninety (90) days. *The Intestate Estate of Gobbeh Kamara and Satta Kamara v. The Intestate Estate of J. Lamark Cox*, Supreme Court Opinion, October Term, 2023.

The facts of the case cited and relied upon by the movant are not analogous to the case at bar. In the case cited by the movant, the Court held that the respondent abandoned its case because of its counsel willful conduct by not only failing to transcribe the records of the case after eighteen (18) months, but also his failure to transcribe the records up to the date he received the assignment for the motion to dismiss and the date of the hearing of the motion to dismiss. It was this action by the respondent's counsel that the Court considered as an abandonment of his case.

This Court says that even though transcription of the records is not grounds for dismissal, it will treat each matter on a case-by-case basis to properly decide whether the appellant's conduct is tantamount to abandonment.

In the case at bar, even though, the respondent failed to transcribe his records to this Court for a period spanning almost a year, this Court does not find it feasible to dismiss the appeal as the respondent subsequently took action and had his records transcribed to this Court and as such it is the considered opinion of this Court that the appeal must be heard on its merits.

However, we must sound this alarm that the ruling of today is in no way intended to encourage indifference or indolence on the part of the clerk of courts and party appellants as such action will not be considered in the future and the appeal may be dismissed.

WHEREFORE AND IN VIEW OF THE FOREGOING, the motion to dismiss the respondent's appeal is hereby denied and the Court shall proceed to hear the appeal on its merits.

Accordingly, the Clerk of this Court is hereby ordered to docket the case for the hearing of the appeal on its merits. Costs are to abide final determination of the case. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING COUNSELLOR NORRIS LESTER TWEAH OF THE GABRIEL, TWEAH, AND ASSOCIATES LAW FIRM APPEARED FOR THE MOVANT. COUNSELLOR JONATHAN T. MASSAQUOI OF THE INTERNATIONAL LAW GROUP APPEARED FOR THE RESPONDENT.

Motion denied.